

CHAPTER 27

An Act to increase the amount which may be borrowed by the Gas Council and Area Boards under the Gas Act, 1948, and to amend that Act with respect to the expenses of the Minister in connection with the testing of gas for compliance with standards prescribed under that Act.
[13th April, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of
borrowing
powers.
11 & 12 Geo.
6. c. 67.

1.—(1) Subsection (3) of section forty-two of the Gas Act, 1948 (which imposes a limit of four hundred and fifty million pounds upon the aggregate of the amounts outstanding in respect of the principal of stock issued by the Gas Council and in respect of temporary loans raised by that Council or any Area Board) shall have effect, in relation to sums borrowed before the end of March, nineteen hundred and sixty-six, as if for the words “four hundred and fifty million pounds” there were substituted the words “five hundred million pounds or such greater sum, not exceeding five hundred and twenty-five million pounds, as the Minister may by order specify”.

(2) No order shall be made under the said subsection (3) as amended by this section unless a draft thereof has been laid before the Commons House of Parliament and has been approved by a Resolution of that House; and so much of subsection (3) of section seventy-one of the said Act as provides that orders under that Act shall be subject to annulment in pursuance of a Resolution of either House of Parliament shall not apply.

Recovery of
expenses in
connection
with testing
of gas.

2.—(1) Without prejudice to subsection (3) of section fifty-five of the Gas Act, 1948 (which requires the Gas Council to repay to the Minister of Power the remuneration, allowances and pensions of persons appointed by him under that section to carry out tests of the gas supplied by Area Boards) the Gas Council shall repay to that Minister such part of his other expenses as he may, with the consent of the Treasury, determine to be attributable to his functions in connection with the testing of gas for the purposes of that section.

(2) Any liability of the Gas Council in respect of sums payable by them, whether under the said subsection (3) or under subsection (1) of this section, on account of pensions shall, if the Minister so determines, be satisfied by way of contributions calculated, at such rate as may be determined by the Treasury, by reference to remuneration.

(3) The reference in this section to expenses of the Minister of Power includes a reference to expenses incurred by any other Government department in connection with the Ministry of Power, and to such sums as the Treasury may determine in respect of the use for the purposes of that Ministry of any premises belonging to the Crown.

3.—(1) This Act may be cited as the Gas Act, 1960.

(2) The Gas and Electricity (Borrowing Powers) Act, 1954, and so much of the Fourth Schedule to the Electricity Act, 1957, as amends that Act, are hereby repealed.

Short title and
repeal.
2 & 3 Eliz. 2.
c. 52.
5 & 6 Eliz. 2.
c. 48.

CHAPTER 28

An Act to relax the financial conditions for legal aid under Part I of the Legal Aid and Advice Act, 1949, and under the Legal Aid (Scotland) Act, 1949, by altering the limits on disposable income and disposable capital, and the maximum amount of the contribution to the legal aid fund, to make further provision for the remuneration of counsel and solicitors in connection with such legal aid or with applications for it, and to explain references in those Acts to payment and the like.
[13th April, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In subsection (1) of section two of the Legal Aid Act (in the words "legal aid shall be available for any person whose disposable income does not exceed four hundred and twenty pounds a year") for the words "four hundred and twenty pounds a year" there shall be substituted the words "seven hundred pounds a year or such larger yearly figure as may be prescribed", and in the proviso (under which a person with a disposable capital of more than five hundred pounds may be refused legal aid) after the words "five hundred pounds" there shall be inserted the words "or such larger figure as may be prescribed".

(2) In subsection (1) of section three of the Legal Aid Act (which imposes a maximum on a person's contribution to the legal aid